

9:30 AM

LINE: 1

23-CIV-01369

PATRICIA MORGOVSKY VS. ANETTA KALK MIGDAL AND AS A TRUSTEE OF MIGDAL 2016
LIVING TRUST, ET AL

PATRICIA MORGOVSKY

ANETTA KALK MIGDAL AND AS A TRUSTEE OF MIGDAL 2016 LIVING TRUST

PRO SE

WILLIAM F. STANGER

OMNIBUS MOTION OF PLAINTIFF NAUM MORGOVSKY TO FILE NUNC PRO TUNC SUBSTITUTION OF PLAINTIFF
PATRICIA MORGOVSKY AND TO STRIKE DEFENDANTS' ANSWERS AND ENTER THEIR DEFAULTS

TENTATIVE RULING:

Plaintiff Naum Morgovsky's Omnibus Motion to File Nunc Pro Tunc Substitution of Plaintiff Patricia Morgovsky and to Strike Defendants Anetta Kalk Migdal's and Mark Migdal's Answers and Enter Their Defaults is **DENIED**.

The hearing set for August 13, 2026, is **VACATED**.

Preliminary Matters

As a preliminary matter, the notice of motion is defective. Code of Civil Procedure section 1010 requires that a notice of motion be in writing and state when the motion will be made, the grounds upon which it will be made, and the papers upon which it is based. California Rules of Court, rule 3.1110(a), further provides that the opening paragraph of a notice of motion must state the nature of the order sought and the grounds for issuance of the order. The present motion proceeds from the caption directly to the supporting memorandum and contains no separate notice of motion satisfying these requirements.

Defendants Anetta Kalk Migdal ("Anetta") and Mark Migdal ("Mark") object to this procedural defect but acknowledge that they suffer no prejudice except to the extent the Court might grant relief on grounds not reasonably apparent from the moving papers. Because the Court denies the motion in its entirety for the reasons stated below, it finds no prejudice from considering the motion on the merits notwithstanding the defective notice.

There is, however, no indication that Defendants' opposition was properly served on Plaintiff Naum Morgovsky ("Naum"). The proof of service purports to establish electronic service on Naum but does not identify his electronic service address. (July 9, 2026 Memorandum of Points and Authorities, p. 14.) A proof of electronic service must identify the name and electronic service address of the person served. (Code Civ. Proc., § 1013b, subd. (b)(3).) Moreover, because Naum is self-represented, electronic service requires his affirmative consent; the mere act of electronically filing documents does not constitute such consent. (Code Civ. Proc., § 1010.6, subd. (c)(2)–(3).)

Accordingly, the Court has not considered Defendants' opposition because the record does not establish that it was properly served on Naum. The parties are advised that future violations of applicable filing and service requirements may result in sanctions as authorized by California Rules of Court, rule 2.30.

From the memorandum of points and authorities, Naum appears to seek an order: (1) deeming Exhibits 1 and 2 to Patricia Morgovsky's declaration filed nunc pro tunc as of September 17, 2024, thereby effectuating the substitution of Naum for Patricia as plaintiff; and (2) striking Anetta's and Mark's answers to the First Amended Complaint ("FAC") as untimely and entering their defaults.

Request for Nunc Pro Tunc Substitution

Naum contends that, on September 17, 2024, Patricia assigned to him all of her claims in this action. (Jan. 28, 2026 Motion, p. 22, ¶¶ 3–4.) Before the FAC was filed removing Patricia and naming Naum as the sole plaintiff, Patricia attempted to file a "Notice of Substitution," together with a proof of service, seeking to substitute Naum as plaintiff. (Id. at p. 26.) According to Patricia, the clerk rejected the submission because no proposed order or filing fee accompanied it. (Id. at p. 23, ¶ 7.)

Naum contends that the clerk lacked authority to reject those documents and had a ministerial duty to file them. The Court disagrees that the attempted filing, standing alone, effected a substitution of parties.

Code of Civil Procedure section 368.5 directly addresses a transfer of interest occurring during a pending action:

An action or proceeding does not abate by the transfer of an interest in the action or proceeding or by any other transfer of an interest. The action or proceeding may be continued in the name of the original party, or the court may allow the person to whom the transfer is made to be substituted in the action or proceeding.

(Code Civ. Proc., § 368.5.)

Thus, assuming Patricia validly assigned her interest to Naum, the assignment did not automatically substitute Naum as plaintiff. The action could have continued in Patricia's name, or the Court could have exercised its discretion to substitute Naum as the transferee. (*Casey v. Overhead Door Corp.* (1999) 74 Cal.App.4th 112, 121–123.) A unilateral "Notice of Substitution" did not itself accomplish the judicial substitution contemplated by section 368.5.

Nor may the Court now accomplish that result retroactively through a nunc pro tunc order. The purpose of a nunc pro tunc order is to correct the record so that it accurately reflects judicial action that was actually taken at an earlier time. It may not be used to create retroactively an order that was never made. (*Siegal v. Superior Court* (1968) 68 Cal.2d 97, 101–102 [the function of a nunc pro tunc order is not "to make an order now for then, but to enter now for then an order previously made"].)

Nothing in the record indicates that the Court ordered Naum substituted for Patricia on September 17, 2024, or that the clerk merely failed to record an order actually made by the Court. Naum therefore seeks not to

correct the record of a prior judicial act, but to obtain a present order and have it given retroactive effect. Nunc pro tunc relief is unavailable for that purpose.

The filing-fee issue does not alter this conclusion. California law generally requires payment of the applicable filing fee before the clerk is required to accept for filing a document for which a statutory fee is required. (*Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 459–463; *Mirvis v. Crowder* (1995) 32 Cal.App.4th 1684, 1686–1687.) Government Code section 70617, subdivision (a), currently imposes a \$60 fee for filing a motion, application, or other paper requiring a hearing after the first paper. The Court need not determine whether every reason stated by the clerk for rejecting Patricia's September 2024 submission was correct because, regardless of the filing issue, the attempted "Notice of Substitution" did not itself constitute a court order substituting Naum under section 368.5.

Accordingly, Naum's request to deem the September 17, 2024 documents filed nunc pro tunc so as to effectuate his substitution as plaintiff as of that date is **DENIED**.

Because the subsequently filed FAC identifies Naum as the sole plaintiff in this action, Patricia shall be omitted from the Court's service list. All further notices and papers shall be served on Naum at his address of record: 6 Skymont Court, Belmont, California 94002. A copy of the January 28, 2026 Notice of Case Management Conference shall be re-served on Naum at that address.

Request to Strike Answers and Enter Defaults

Naum also seeks to strike Anetta's and Mark's answers to the FAC and to have their defaults entered.

The request is **DENIED**.

The FAC was served on October 28, 2024. Anetta and Mark filed their answers on November 25, 2024, within 30 days after service of the amended pleading. (See Code Civ. Proc., § 471.5, subd. (a); Nov. 25, 2024 Answers; Oct. 28, 2024 Proof of Service.) Section 471.5, subdivision (a), requires a defendant to answer an amended complaint within 30 days after service and permits entry of default upon a failure to answer.

Naum does not dispute that Anetta and Mark filed answers within the statutory period. Instead, he contends that the answers were not properly served on him within that period and therefore should be stricken and Defendants' defaults entered.

The Court agrees that the record indicates a defect in service. When service is made by mail, Code of Civil Procedure section 1013, subdivision (a), requires the document to be addressed to the person served at the office address last given by that person in a document filed in the action and served on the party making service, or otherwise at that person's residence. Naum identifies 6 Skymont Court, Belmont, California 94002 as his address of record, and the proofs of service accompanying the November 25, 2024 answers do not reflect service at that address. (See Oct. 28, 2024 First Amended Complaint, p. 1; Nov. 25, 2024 Proofs of Service.)

That service defect, however, does not establish a basis for striking timely filed answers and entering defaults. Section 471.5 authorizes default upon a defendant's failure to answer. Here, both Defendants answered.

Naum identifies no authority establishing that defective service of a timely filed answer converts an answering defendant into a defaulting party or requires the Court to strike the answer.

Moreover, striking a pleading and entering default would be disproportionate to a service defect that is readily curable and that does not alter the fact that responsive pleadings were timely filed. (Cf. *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [where a defect justifying striking a pleading is capable of cure, the pleader ordinarily should be afforded an opportunity to correct it].)

Accordingly, Naum’s request to strike Anetta’s and Mark’s answers to the FAC and enter their defaults is **DENIED**.

Disposition

Naum Morgovsky’s Omnibus Motion to File Nunc Pro Tunc Substitution of Plaintiff Patricia Morgovsky and to Strike Defendants Anetta Kalk Migdal’s and Mark Migdal’s Answers and Enter Their Defaults is **DENIED in its entirety**.

The hearing set for August 13, 2026, is **VACATED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants Anetta Kalk Migdal and Mark Migdal, as the prevailing parties, shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 2

26-UDL-00079

473-475 GRAND AVE LLC VS. ARTURO PEREZ, ET AL

473-475 GRAND AVE LLC
ARTURO PEREZ

JOANNA KOZUBAL
PRO SE

PLAINTIFF 473-475 GRAND AVE LLC'S MOTION TO ENFORCE SETTLEMENT AGREEMENT PER CCP 664.6 AND FOR JUDGMENT PURSUANT TO STIPULATION

TENTATIVE RULING:

For the reasons stated below, the Motion to Enforce Settlement Agreement under Code of Civil Procedure section 664.6 and for Entry of Judgment Pursuant to Stipulation, filed by Plaintiff 473-475 Grand Ave, LLC ("Plaintiff"), is **DENIED WITHOUT PREJUDICE**.

First, Plaintiff has not established proper service of the motion on Defendants Arturo Perez and Rubenia Elizabeth Zuniga ("Defendants"). The proof of service states that both Defendants were served electronically at a single email address: andrewperez2129@gmail.com. Defendants are self-represented, and the Court's records contain no evidence that either Defendant expressly consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2), (3).) Electronic filing alone does not constitute express consent to electronic service. (Id., subd. (c)(3)(ii).) Moreover, even if electronic service were authorized, Plaintiff has not established that this single email address is a valid electronic service address for both Defendants.

Second, the notice of motion does not state the courthouse address for Department 2. The first page of each paper must specify the date, time, and location, if ascertainable, of the scheduled hearing. (Cal. Rules of Court, rule 3.1110(b)(1).) The notice is therefore deficient.

If the tentative ruling is uncontested, it will become the order of the Court. Because Defendants are self-represented, counsel for Plaintiff shall prepare, serve, and submit a proposed order that repeats this tentative ruling verbatim, in accordance with California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv). Plaintiff shall provide written notice of the ruling to all parties who have appeared in the action, as required by law.

9:30 AM

LINE: 3

25-CIV-09320

BART D. KIMBER VS. JOE TORRES, ET AL

BART D. KIMBER
JOE TORRES

PRO SE
WILLIAM B. LUTON

DEFENDANT JOE TORRES AND ALL RISK SHIELD INC'S MOTION TO TRANSFER/CHANGE VENUE

TENTATIVE RULING:

For the reasons stated below, the motion to change venue to San Luis Obispo County is **GRANTED** pursuant to CCP §396b. Defendants have offered evidence to show that San Mateo County is neither their residence nor principal place of business. When a plaintiff brings an action against several defendants, both individual and corporate, in a county which is neither the residence nor principal place of business of any defendant, an individual defendant has a right to a change of venue to the county of his residence even though venue as initially laid may otherwise be justifiable upon one of the grounds in §395.5. *Carruth v. Superior Court* (1978) 80 Cal.App.3d 215, 220-221.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.